

10:00 a.m.

MATTER OF SILVEIRA

21PR8357

OBJECTORS' MOTION FOR JUDGMENT ON THE PLEADINGS

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a Motion for Judgment on the Pleadings brought by "Objectors" Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; Rodd Peters; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter "Objectors.")

The unopposed Request for Judicial Notice of the consolidation of all matters is granted.

I. Background

Carolyn Silveira ("Carolyn")¹ and David J. Silveira Sr. ("David, Sr.") were a married couple with five children: Audrey Petricevich ("Audrey"), Manuel Silveira ("Manuel"), Francille Elaine Peters ("Francille"), David Silveira Jr. ("David Jr. ") and "Dominick Silveira ("Dominick").

Relevant to the instant motion, on March 17, 2021, David, Sr. individually and as trustee of the David J. Silveira Revocable Living Trust dated January 8, 2020, Audrey, Manuel, and Dominick filed a Petition against Francille², Rodd Peters ("Rodd"),³ the Estate of Carolyn Silveira ("Estate"), and David Jr. The Petition's third cause of action is for Quiet Title against Francille, as Trustee, only. The fourth cause of action is for Partition in Kind against all Respondents.

¹ Due to the common surnames, first names will be used for all parties. No disrespect is intended.

² Against her individually and as successor Trustee of the Carolyn L. Silveira Separate Property Revocable Trust, dated August 2, 2016.

³ Against him individually and as Co-Trustee of The Peters Family Trust, dated March 7, 2013.

According to the Petition, on or about March 24, 1969, David Sr. and Carolyn Silveira, a married couple, and as Joint Tenants purchased an 80 acre parcel of real property from David Sr.'s parents, Clyde and Mildred Silveira (the "80 Acre Property.") On or about October 31, 1979, David Sr. and Carolyn purchased an adjoining 10 acre parcel holding the same as joint tenants (the "10 Acre Property.") On or about March 23, 1987, David Sr., Carolyn, Audrey, Francille, David Jr., Manuel and Dominick all purchased an adjoining 120 acre parcel with each to hold a 1/6 interest, except David and Carolyn who jointly held a 1/6 interest. ("120 Acre Property.")

The cause of action for quiet title alleged that Respondents claimed adverse interests in three separate properties: 1) 120 Acre Property, 2) 80 Acre Property, and 3) 10 Acre Property. The cause of action for Partition in Kind sought to partition the Petitioners' interest in the 120 Acre Property from Respondents.

II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

III. Discussion

Oddly, Objectors move for judgment on the pleadings, not in favor of themselves, but in favor of Petitioners.

On March 17, 2021, David Sr, filed a Verified First Amended Petition for (1) Recovery of Trust Property Pursuant to Probate Code § 850, (2) Conversion, (3) Quiet Title, and (4) Partition Action. Objectors state that they never objected to David Sr.'s causes of action for quiet title or the partition action. They assert that the partition of the 120 Acre Property has never been at issue and apparently do not object to its partition. Thus, Objectors state they have failed to present "any material issue or defense to the cause of action for quiet title [or the partition action]."

Where the moving party is a defendant (as is essentially Objector's position here), a motion for judgment on the pleadings may be granted where either of the following conditions exist: (1) the Court has no jurisdiction of the subject cause of action alleged in the complaint; and (2) the Complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438(c)(1)(B).)

Neither of these arguments are made by the Objectors. Thus, there are no grounds on which the Court may grant this particular Motion.

However, before the Court posted this intended tentative Ruling, Petitioners filed a dismissal of the third and fourth causes of action. Therefore, rather than Ruling on the merits of the Motion for Judgment on the Pleadings, the Court rules: The Motion for Judgment on the Pleadings is **DENIED as Moot**. Additionally, The Court admonishes all parties from engaging in unnecessary in unnecessary motion practice and appearances of gamesmanship, and strongly recommends substantive meet-and-confers before any future filings or hearings on any motions.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required concerning this Ruling.